

STATE OF NEW YORK

5341--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. ZACCARO, CRUZ, TORRES, ROZIC, CONRAD, STECK, BERGER, EPSTEIN, DeSTEFANO, CHANG, BEEPHAN, YEGER, SEAWRIGHT, HEVESI, COLTON, SCHIAVONI, HOOKS, McDONOUGH, NOVAKHOV, NORBER, SEMPOLINSKI, GIGLIO, LEMONDES, REYES, WILLIAMS, K. BROWN, CHLUDZINSKI, DILAN, GALLAHAN, BUTTENSCHON, McDONALD, LEE, TAPIA, DAVILA, SMULLEN, BRABENEK, FITZPATRICK, BLANKENBUSH, BORES, LEVENBERG, GLICK, GANDOLFO, PALMESANO -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the cannabis law, in relation to further restricting cannabis storefronts from being located within five hundred feet of a school and two hundred feet of a house of worship if they are located in a mixed use building

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 6 of section 72 of the cannabis law is amended to read as follows:

6. No cannabis retail licensee shall locate a storefront within five hundred feet of [a] school grounds as such term is defined in the education law and for the purposes of this subdivision shall also include all entrances and exits in a mixed use building which contains or is used as a school, or is within two hundred feet of a house of worship. For purposes of this subdivision, a "house of worship" shall include any area, including entrances and exits, in a mixed use building which contains or is used as a house of worship.

§ 2. Subdivision 4 of section 77 of the cannabis law is amended to read as follows:

4. No applicant shall be granted an adult-use on-site consumption license for any premises within five hundred feet of school grounds as such term is defined in the education law and for the purposes of this subdivision shall also include all entrances and exits in a mixed use

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 building which contains or is used as a school, or is two hundred feet
2 from a house of worship. For purposes of this subdivision, a "house of
3 worship" shall include any area, including entrances and exits, in a
4 mixed use building which contains or is used as a house of worship.
5 § 3. This act shall take effect immediately and shall apply to any new
6 license issued on or after such effective date.